

not provided an Answer, and Plaintiff had not filed a proof of service of process.

The court continued the Motion to 9/8/26, 9am, and ordered Plaintiff to properly notify Defendant.

On 8/12/26, Plaintiff filed a proof of service of the process documents, reflecting that they served Defendant on 11/18/24, through substitute service, at the address that was used for the Motion filed on 5/1/26.

However, there is no indication that Plaintiff notified Defendant of the 9/8/26, hearing.

Disposition

This Motion will be continued, one last time, to 1/12/27, 9am.

Plaintiff is to notify Defendant of the new hearing date.

5. 9:00 AM CASE NUMBER: L24-11692

CASE NAME: LENDMARK FINANCIAL SERVICES, LLC, A LIMITED LIABILITY COMPANY VS. DAVID JOHNSON

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY: JOHNSON, DAVID

***TENTATIVE RULING**

Mr. Gramajo, counsel for Defendant, filed a Motion to be relieved as counsel, along with a Declaration. He has provided notice to his client, the Defendant.

After a review of the Declaration, this court finds good cause to grant counsel's Motion.

Disposition

Motion will be granted.

Counsel for Defendant to file Order, provide written notice to Defendant, and to file proof of that notice.

6. 9:00 AM CASE NUMBER: L25-00011

CASE NAME: DISCOVER BANK VS. JUAN CRUZ

***HEARING ON MOTION IN RE: NTC AND MTN TO VACATE JUDGMENT**

FILED BY:

***TENTATIVE RULING**

Defendant filed a Motion, on 5/13/26, to vacate Judgment. The Motion is unopposed, but the Motion was originally scheduled to be heard 8/4/26, at which time the court found that Defendant had not provided any notice to the Plaintiff and continued the Motion to 9/8/26. The court also ordered

Defendant to provide notice of the 9/8/26, hearing, as well as serve a copy of the Motion on Plaintiff.

On 8/6/26, Plaintiff filed proof indicating that he served Plaintiff with a copy of the Motion. However, the Motion reflects the original date of 8/4/26. There is no indication that Defendant provided notice to Plaintiff of the 9/8/26, hearing.

Disposition

This is the second time Defendant has not properly notified the Plaintiff.

This Motion will be dropped.

7. 9:00 AM CASE NUMBER: L25-01159

CASE NAME: WELLS FARGO BANK, NA VS. RONALD REYES

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL PER CCP 664.6 & ENTER JUDGMENT
FILED BY PLN ON 6/3/26**

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with the process documents. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$30,739.74, plus costs, less any credits for payments received.

The Defendant made payments of \$3,690.

Costs are \$460. An accounting of costs was provided in the Motion.

The Stipulated Agreement was filed 7/21/25.

The case was dismissed.